

KMVTECH EDUCATION

IPL1 · Module 2

Copyright subsistence

Lesson: What copyright protects

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Copyright protects original literary, musical, artistic and other specified works. Protection arises automatically on creation and fixation; registration is not required for subsistence (though it aids proof and enforcement).

Originality requires independent creation and a modest degree of skill, judgement or labour — not novelty in the patent sense. Ideas, facts, procedures and methods are not protected; expression is.

Term is generally life of the author plus 50 years (or as provided by statute for specific categories). Neighbouring rights protect performers, producers of phonograms and broadcasting organisations.

- Ownership initially vests in the author; employment, commission and assignment rules can shift ownership. Moral rights protect attribution and integrity.

2. DETAILED RULES AND APPLICATION

Example: a software program, a textbook, a photograph and a musical composition may all attract copyright if original and fixed; the underlying algorithm or historical facts do not.

Fixation + originality of expression = subsistence; ideas remain free.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's Copyright and Neighbouring Rights Act implements Berne and TRIPS standards. Collective management organisations and URSB play practical roles in licensing and enforcement.

Exam trap: claiming copyright in ideas, titles alone, or official texts without checking statutory exclusions, or assuming registration is mandatory for existence.

Method: identify the work category → test originality and fixation → determine ownership and term → note moral rights and any formalities that aid enforcement.

Sets up the infringement and exceptions analysis in the next module.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. Does copyright require registration for subsistence?
2. What does originality require?
3. What is not protected by copyright?
4. What is the general term of protection?
5. What are neighbouring rights?
6. Where does ownership initially vest?

Exam tip: Expression, not ideas; automatic on fixation.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.